

tion whether *all* possible conditions were in the ambit of Art. II, it addressed the specific limitation on penal conditions attached to commutations:

"So, conditional pardons by the king do not permit transportation or exile as a commutable punishment, unless the same has been provided for by legislation." *Id.*, at 313.

The remaining cases on which the Court relies to sustain the condition offer minimal support and are easily distinguished.¹⁵

In conclusion I note that where a President chooses to exercise his clemency power he should be mindful that

"[t]he punishment appropriate for the diverse federal offenses is a matter for the discretion of Congress, subject only to constitutional limitations, more particularly the Eighth Amendment." *Bell v. United States*, 349 U. S. 81, 82 (1955).

See *Ex parte United States*, 242 U. S. 27, 42 (1916). The Congress has not delegated such authority to the President. I do not challenge the right of the President to issue pardons on nonpenal conditions, but, where the Executive elects to exercise the Presidential power for commutation the clear import of the Constitution mandates that the lesser punishment imposed be sanctioned by the legislature.¹⁶

¹⁵ *United States v. Wilson*, 7 Pet. 150 (1833), turned on the technical question of whether a pardon must be pleaded and only referred in dictum to the possibility that the President could condition a pardon. In *Ex parte Garland*, 4 Wall. 333 (1867), and *Ex parte Grossman*, 267 U. S. 87 (1925), the Court focused on the discretionary aspect of the pardon power which is here unchallenged. The emphasis was on the right of the President to grant a pardon to any criminal, for any offense, at any time. The question of conditional action was raised in only a tangential manner.

¹⁶ The Court likens the no-parole condition to "sanctions imposed by legislatures such as mandatory minimum sentences" The